

prevent wildlife or other types of sound or motion from triggering the sensors during the late night or early morning since there are many coyotes, racoons, squirrels, birds, bats, rats, deer (and kids and pets and more) that do show up more than occasionally at various locations and times on the property.” (Id., ¶14.) Lastly, he declares if the system is still being triggered late at night or in the early morning, it is most likely because the Prines, Sundes, or one of their customers or some other animal are approaching his home garages, vehicles, pets or personal space, which is what the Security System is intended to capture and hopefully deter or prevent – or at least archive for later follow up if not immediate. (Id., ¶15.)

10. *City of Riverside v. Rubidoux Community Servs. Dist.*, Case No. CIVSB1310520
Evidentiary Hearing/ Oral Argument
6/12/26, 9:00 a.m., Dept. S-17

Here, the City of Riverside seeks to recover \$21,099,675.00 from the District, representing the District’s 7.6% contractual share of capital costs for improvements to the regional wastewater treatment plant. (Statement of Evidence (SOE) # 1.)

The Court of Appeal overturned the initial trial court decision and instructed the lower court to focus specifically on whether any post-1990 regulatory changes necessitated and directly required the plant upgrades, making them nondiscretionary under the 1990 Agreement.

The limited nature of the review of evidence as framed by the Court of Appeals is whether these improvements were required by post-1990 environmental regulations, which Rubidoux must help fund, or were discretionary (or a matter of preference) which Rubidoux could avoid. The Court of Appeal directed further proceedings to “determine the specific regulatory requirements that necessitated some or all of the upgrades, if any.” (SOE Nos. 2-3.)

The Court is inclined to take the matter under submission following oral argument.

As to the Objection to Notice of Intent to Introduce Oral Witness Testimony: Riverside objected the District’s notice of intent to introduce oral testimony, citing prior failure to disclose the intended witness, failure to identify her as an expert, and inappropriate new testimony. The Court will hear argument on this topic, but it is inclined to **GRANT** the objection and preclude the testimony, as no new evidence was requested from the Court and its allowance may cause undue prejudice and delay.

8. *Tembrina v. Williams Furnace Co., et al*, Case No. CIVSB2127440
Motion for Preliminary Approval of Class Action Settlement
6/12/26, 1:30 p.m., Dept. S-17

The Court would **CONTINUE** for supplemental briefing.

There are a number of concerns: First, the proposed PAGA period is intended to run from January 12, 2020 to July 22, 2024. (Settlement, 1.35.) However, the earliest PAGA notice was sent in to the LWDA on July 8, 2021. (Settlement, 2.1; Khalili Decl., ¶15.) This proposed PAGA period runs beyond the available statute of limitations and no information is provided to explain why it would be proper to exceed the four corners of the operative documents. Second, the proposed agreement seeks to designate 90% of the settlement payments as representative of penalties and interest. (Settlement, 3.2.4.1.) No explanation is provided why this ratio is appropriate when the central allegations are for *wages*. (See FAC; also Khalili Decl., ¶18 [bulk of exposure relating to overtime].) Finally, the settlement proposes attorneys' fees at 35% of the gross settlement. While the Court does not disapprove of this above-normal percentage *per se*, it would require some showing of unusual risk or complexity to warrant the upward departure. All these issues must be addressed prior to the next hearing.
